

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Two — Comparator: What Other Jurisdictions Built, What Alberta Chose Not To

Section 2.1 — The Federal Floor: The Accessible Canada Act

Part One closed by establishing that Alberta has the structural capacity to build proper disability architecture and has chosen, through legislation, to build it for one disability route and refuse to extend it to others. Part Two examines the comparator question that conclusion requires: if Alberta has chosen not to build proper architecture, what have other jurisdictions chosen to build, and what does the comparison reveal?

The comparator analysis begins with the federal *Accessible Canada Act* because the federal Act establishes the legal floor every Canadian jurisdiction now operates above. The federal government, with constitutional jurisdiction over a narrower slice of disabled Canadians' lives than any province, passed comprehensive accessibility legislation in 2019 with cross-party support, a binding deadline, an enforcement architecture, and an ongoing implementation process that is, six years into operation, producing measurable results. The provinces that have followed with their own analogous legislation are documented in Sections 2.2 through 2.6. Alberta is documented in Section 2.7 as the outlier that has not. The federal floor is what every other Canadian government has built upward from. Part Two examines what each jurisdiction built, and what Alberta's deliberate non-construction of equivalent provincial architecture reveals about the choice the province has made.

This section documents the federal *Accessible Canada Act* in detail: its origin, structure, scope, enforcement architecture, and operational record. The objective is not to celebrate the federal Act as perfect — subsequent reviews of the Act, including the statutory five-year independent review currently underway, have identified implementation gaps and enforcement shortfalls that the disability community has documented and that the federal government has acknowledged. The objective is to establish what comprehensive accessibility legislation looks like when a Canadian government chooses to build it, and to make the comparator framework explicit for the provincial analyses that follow.

Origin and Passage

The federal *Accessible Canada Act* (the ACA) was developed through a multi-year consultation process beginning in July 2016 and continuing through February 2017. Employment and Social Development Canada conducted public consultations across the country, hearing from more than 6,000 Canadians and 90 organizations. The consultation focused on the question of what an accessible Canada would mean to people with disabilities, the disability community, and the broader Canadian public. The consultation findings established the seven priority areas the Act would later address and informed the foundational principle the Act would later codify: *Nothing Without Us*, the operating commitment that legislation, policy, and program decisions affecting persons with disabilities will be made with persons with disabilities at the table, not on their behalf.

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The legislation introduced as Bill C-81, *An Act to Ensure a Barrier-Free Canada*, was tabled in the House of Commons on June 20, 2018, by the Honourable Carla Qualtrough, then Minister of Public Services and Procurement and Accessibility. The Bill received Royal Assent on June 21, 2019, after passage through both houses of Parliament, and came into force on July 11, 2019. The Act passed with multi-party support; the legislation's core principles were not contested across party lines, and the implementation framework has been continued under both Liberal and Conservative federal accessibility critic positions across the subsequent years.

The legislation is bound at the international level by Canada's status as a State Party to the United Nations *Convention on the Rights of Persons with Disabilities* (UN CRPD), which Canada signed in 2007 and ratified on March 11, 2010. The ACA's preamble explicitly references the CRPD obligation to take appropriate measures respecting accessibility and to develop and monitor minimum accessibility standards. The federal Act is, in this sense, the domestic operationalization of an international commitment Canada had accepted nine years before the federal legislation existed. Section 2.6 examines the CRPD framework directly and the obligation it places on all Canadian jurisdictions, including Alberta.

The legislative purpose is set out in Section 5 of the Act: *to benefit all persons, especially persons with disabilities, through the realization, within the purview of matters coming within the legislative authority of Parliament, of a Canada without barriers, on or before January 1, 2040*. The deadline is statutory. The barrier-removal mandate is permanent. The architecture is built around achieving the deadline through structured, measurable progress over a twenty-one-year horizon.

The Seven Priority Areas

The ACA structures all federal accessibility work around seven defined priority areas. The areas were identified through the consultation process and are codified in Section 5 of the Act. Each area becomes the subject of standards development through Accessibility Standards Canada (described below), of accessibility plan requirements for federally regulated organizations, of compliance monitoring through the Accessibility Commissioner, and of public progress reporting through the federal Accessibility Hub hosted by Statistics Canada.

The seven areas are: *employment; the built environment; information and communication technologies (ICT); communication other than ICT; the procurement of goods, services and facilities; the design and delivery of programs and services; and transportation*.

The *employment* area covers the full employment lifecycle for federally regulated employers, including recruitment, hiring, onboarding, accommodation, retention, advancement, and termination. The objective is to ensure that persons with disabilities have equal opportunities to use their skills, grow, and succeed in federally regulated workplaces.

The *built environment* area covers federally regulated physical spaces, including federal government buildings, parks, washrooms, and other public-facing federal infrastructure. The objective is barrier-free physical environments where people can live, work, travel, and gather with dignity and independence.

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The *information and communication technologies* area covers digital tools and platforms, including websites, applications, software, and online services. Federal organizations are required to comply with the latest version of the Web Content Accessibility Guidelines (WCAG), level AA, available in both French and English.

The *communication other than ICT* area covers the full range of communication contexts, from conversations and public announcements to meetings, emails, and printed materials. Importantly for the Deaf community, the Act explicitly recognizes American Sign Language (ASL), Quebec Sign Language (Langue des signes québécoise, LSQ), and Indigenous sign languages as the primary languages of Deaf people in Canada. The recognition is statutory. It is the first federal legislation in Canadian history to make this recognition explicit.

The *procurement* area covers the federal government's purchasing of goods, services, and facilities. The objective is to embed accessibility into every step of the buying process, ensuring that what the government purchases is inclusive and usable by everyone.

The *design and delivery of programs and services* area covers the architecture through which federal programs reach the public — in person, online, or by phone. The objective is to ensure that everyone can use federal programs, understand the information provided, and obtain the support they need.

The *transportation* area covers the federally regulated transportation network: airlines, interprovincial bus and rail, marine, and ferries. The objective is barrier-free travel from planning and booking through boarding, journey, and arrival. Enforcement in this area is delegated to the Canadian Transportation Agency.

These seven areas, taken together, define the federal jurisdiction's substantive scope under the Act. Each area generates standards, regulations, plans, reports, and complaint mechanisms. The architecture is not a statement of aspiration; it is a structured workflow producing documented outputs across all seven areas in parallel, on a continuing basis, against the 2040 deadline.

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ACCESSIBLE CANADA ACT — THE SEVEN PRIORITY AREAS

Employment — full employment lifecycle for federally regulated employers, recruitment through retention, accommodation, advancement, termination.

Built environment — federally regulated physical spaces including federal buildings, parks, washrooms, public-facing infrastructure.

Information and communication technologies (ICT) — websites, applications, software, online services. WCAG 2.1 AA compliance required.

Communication other than ICT — meetings, emails, printed materials, public announcements. ASL, LSQ, and Indigenous sign languages statutorily recognized as primary languages of Deaf people in Canada.

Procurement — accessibility embedded in federal government purchasing of goods, services, and facilities.

Design and delivery of programs and services — federal program architecture reaching the public in person, online, or by phone.

Transportation — federally regulated transportation network (airlines, interprovincial bus and rail, marine, ferries). Enforcement delegated to the Canadian Transportation Agency.

The Implementing Institutions

The ACA created a multi-institution implementation framework that distributes accessibility responsibility across standards development, compliance monitoring, enforcement, and oversight. Each institution has defined statutory functions and reports publicly on its work. The architecture is designed to prevent any single institutional failure from collapsing the broader implementation.

Accessibility Standards Canada (ASC). Established under Section 17 of the Act as the Canadian Accessibility Standards Development Organization (originally CASDO, renamed to ASC), this Crown corporation develops the technical standards that federally regulated organizations must comply with under the regulations. ASC's standards-development process operates through technical committees with majority representation from persons with disabilities and the disability community, in keeping with the *Nothing Without Us* principle. Standards developed by ASC may be voluntary or, where the Minister chooses to incorporate them into regulation, mandatory. Standards currently in development across the seven priority areas include accessible communications, accessible employment, accessible built environment, emergency egress, accessible information and communication technologies, plain language standards, and accessible communities (the CAN-ASC-2.12 standard currently in public consultation).

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The Accessibility Commissioner. The Commissioner is appointed under the Act as a member of the Canadian Human Rights Commission and is the primary federal enforcement officer for accessibility compliance. The Commissioner's powers include investigating complaints, conducting inspections, issuing compliance orders requiring organizations to correct contraventions, issuing notices of violation that can carry administrative monetary penalties of up to \$250,000 per violation, and entering into compliance agreements with organizations agreeing to corrective terms. The Commissioner enforces the Act in all priority areas for most regulated organizations and in specific priority areas for organizations whose other compliance falls under specialized regulators (such as transportation entities falling under the Canadian Transportation Agency for transportation-specific compliance).

The Chief Accessibility Officer (CAO). The CAO is appointed under the Act as a special advisor to the federal Minister responsible for accessibility. The CAO's role is strategic: to monitor systemic barriers, advise on emerging accessibility issues, report annually on the state of accessibility across federally regulated sectors, and facilitate engagement with the disability community. The CAO does not enforce compliance; the CAO documents the landscape and makes recommendations.

The Canadian Transportation Agency (CTA). The CTA enforces accessibility compliance within the federal transportation network across all seven priority areas as they apply to transportation. The CTA's regulatory authority pre-dates the ACA and was extended to incorporate the Act's accessibility framework.

The Canadian Radio-television and Telecommunications Commission (CRTC). The CRTC enforces accessibility compliance for broadcasting and telecommunications service providers in the priority areas applicable to those sectors.

The Federal Public Sector Labour Relations and Employment Board. The Board handles accessibility complaints from federal public servants and parliamentary employees through the established grievance process, providing an internal complaint pathway parallel to the public-facing pathway through the Accessibility Commissioner.

The institutional design is intentionally distributed. The objective is to embed accessibility implementation across multiple federal entities rather than concentrating it in one administrative structure that could be defunded, narrowed, or restructured by ministerial discretion alone. The Bill 12 architecture documented in Part One Section 1.4 — in which a single minister was granted authority to narrow eligibility, repeal indexation, and limit appeal jurisdiction by regulation — is structurally inconsistent with the federal model the ACA establishes for accessibility.

The Compliance Architecture

The ACA's compliance architecture requires federally regulated organizations to perform three documented activities on defined timelines: prepare and publish accessibility plans, establish and document feedback processes, and produce and publish progress reports.

Accessibility plans must be developed by all federally regulated organizations on a three-year cycle. Plans must include sections covering each of the seven priority areas, must document how the organization consulted persons with disabilities in plan development, and must describe the barriers the

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organization has identified and the actions it will take to remove them. The federal government, the Canadian Forces, Crown corporations, the RCMP, and parliamentary entities were required to publish their first accessibility plans by December 31, 2022. Large businesses (100 or more employees) were required to publish first plans by June 1, 2023. Small businesses (10 to 99 employees) were required to publish first plans by June 1, 2024. Businesses with nine or fewer employees are exempt from the planning requirement.

Feedback processes must be established by all covered organizations and must allow members of the public to submit feedback on the organization's accessibility, the barriers they encounter in dealing with the organization, and the implementation of the organization's accessibility plan. Organizations must designate a person responsible for receiving feedback, must ensure the feedback channel is itself accessible, and must respond to feedback received. The feedback process must be described in the organization's published accessibility plan.

Progress reports must be produced annually documenting the organization's work in implementing its accessibility plan, the barriers identified and removed in the reporting period, the feedback received and the consideration given to that feedback, and the consultation conducted with persons with disabilities. Progress reports must be published in the same accessible formats and locations as accessibility plans.

All three documents — plans, feedback processes, progress reports — must be available on the home page of the organization's website or through a hyperlink on the organization's website. They must follow the latest version of the Web Content Accessibility Guidelines (WCAG), level AA, and must be available in both French and English. Organizations without an online presence must keep paper copies at all business locations. Organizations have 48 hours after publication to notify the Accessibility Commissioner of the publication.

The compliance architecture is, in operational terms, an ongoing public-record-generating system. Six years into the Act's operation, federally regulated organizations have produced thousands of accessibility plans and progress reports, all of which are publicly accessible, all of which document specific barriers and specific removal commitments, and all of which create a baseline against which the next reporting cycle can be measured. The architecture is built around the recognition that accessibility implementation cannot be achieved through legislation alone — it requires sustained, documented, public organizational work over decades. The ACA structures that work and creates the public record by which it can be evaluated.

The Six Implementing Principles

Section 6 of the ACA codifies six principles that the Act, the regulations, and all implementing entities must operate in accordance with. These principles function as both interpretive guidance and substantive obligations on the implementing institutions. The principles are:

Everyone must be treated with dignity regardless of their disabilities.

Everyone must have the same opportunity to make for themselves the lives that they are able and wish to have, regardless of their disabilities.

Everyone must be able to participate fully and equally in society regardless of their disabilities.

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Everyone must have meaningful options and be free to make their own choices, with support if they desire, regardless of their disabilities.

Laws, policies, programs, services and structures must take into account the disabilities of persons, the different ways that persons interact with their environments, and the multiple and intersecting forms of marginalization and discrimination faced by persons.

Persons with disabilities must be involved in the development and design of laws, policies, programs, services and structures.

The principles are operative provisions, not preamble. They appear in the body of the Act and bind the implementing institutions. They function as the legislative codification of the *Nothing Without Us* commitment and as the standard against which any specific regulation, standard, or compliance decision can be evaluated. The principles are the floor below which federal accessibility implementation cannot fall, and the ceiling toward which it is statutorily required to aspire.

The principles' presence in the Act is a significant departure from purely transactional regulatory schemes. Most accessibility regulation in North American jurisdictions before 2019 operated through technical compliance requirements without explicit statutory principles guiding implementation. The ACA's principles are an attempt to ensure that the technical compliance produces substantive outcomes for the people the legislation exists to serve. The principles are not, in the federal context, decorative. They are the foundation on which standards and regulations are built and against which implementation is evaluated.

The Five-Year Statutory Review

The ACA includes, at Section 117, a statutory requirement for an independent review of the Act every five years. The first review is currently underway and will produce, on completion, a report tabled in both houses of Parliament. The review process is designed to identify gaps in the Act's design, shortfalls in its implementation, and opportunities for amendment. The review's findings, when published, will form the next round of legislative and regulatory work to strengthen the federal accessibility architecture.

The disability community's input into the first review has identified several documented concerns. Implementation has been slower than the disability community considers acceptable. Enforcement through the Accessibility Commissioner has been more limited in scope than the legislation appears to permit. Coordination across the multiple implementing institutions has been uneven. The 2040 deadline, while preserved in legislation, requires substantially accelerated implementation to be achievable in the remaining timeline. These concerns are real and are being aired publicly in the review process. They are not, however, evidence that the legislation itself is unsound; they are evidence that legislation alone is insufficient and that sustained political, administrative, and resource commitment is required to deliver the outcomes the legislation mandates.

The relevant point for this Part Two analysis is that the federal Act has a built-in self-correction mechanism. The five-year review is not optional. It cannot be avoided by ministerial discretion. It will produce a public document. Subsequent amendments to the Act will be made, in part, on the strength of the review's findings. The architecture is designed to be improved over time, with structured input from the

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disability community as part of every revision cycle. This is what mature accessibility legislation looks like in operation.

What the ACA Does Not Cover

The ACA's scope is constitutionally bounded. The Act applies only to entities under federal jurisdiction. This includes the federal government and its departments and agencies, Crown corporations, the Royal Canadian Mounted Police, the Canadian Armed Forces, Parliament, First Nations band councils on reserve, and federally regulated private-sector entities (banks, interprovincial transportation providers, broadcasting and telecommunications service providers). It does not apply to provincial and territorial governments, provincially regulated employers and service providers, municipal governments, or the vast majority of healthcare, education, social services, housing, and disability-program infrastructure that operates under provincial jurisdiction.

For Alberta, this means the ACA covers approximately 6 to 8 percent of the workforce (the federally regulated portion) and leaves the remaining 92 to 94 percent to provincial regulation. The ACA's 2040 deadline applies to the federal portion. The accessibility obligations governing the AISH, PDD, FSCD, and ADAP architectures documented in Part One are not subject to the ACA. Alberta's healthcare system, education system, municipal infrastructure, provincially regulated workplaces, and provincial program-and-service delivery are not subject to the ACA. The federal floor is real, but the federal floor stops where provincial jurisdiction begins.

The ACA explicitly contemplates this jurisdictional boundary. The Act's preamble notes that achieving a barrier-free Canada by 2040 *requires collaborative action across the country, involving all levels of government, the private sector, the disability community, Indigenous Peoples, and other organizations and individuals working together to advance change in our communities and workplaces*. The Act does not, because constitutionally it cannot, mandate provincial action. It does, however, establish a federal floor that the provinces are invited to build upward from.

Most provinces have, in the years since the ACA's passage, accepted that invitation. Sections 2.2 through 2.5 examine the provincial accessibility statutes that Ontario, Manitoba, Nova Scotia, British Columbia, and Saskatchewan have enacted to extend equivalent architecture into provincial jurisdiction. Each statute is shaped to its province's specific context but operates within the same overall framework: defined priority areas, mandated accessibility plans, public reporting, established enforcement, and a statutory deadline. Alberta's absence from this list is the subject of Section 2.7. The federal floor exists. The provincial buildings on top of the floor exist in every Canadian province with significant population except one.

What This Section Establishes

The federal *Accessible Canada Act* establishes that comprehensive accessibility legislation is, in 2026, an established Canadian governance norm. The Act is operational, multi-institution, multi-stakeholder, and statutorily bound to specific deadlines and to a defined set of principles that codify the *Nothing Without Us* commitment. The Act has multi-party support. The Act has produced thousands of public-record accessibility plans and progress reports across federally regulated sectors. The Act has built

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standards-development infrastructure (Accessibility Standards Canada), enforcement infrastructure (the Accessibility Commissioner), strategic-advisory infrastructure (the Chief Accessibility Officer), and self-correction infrastructure (the five-year statutory review). The Act is not perfect; the implementation is uneven; the disability community has documented concerns. The Act is, however, the framework that exists at the federal level, the framework Canada signed on to internationally through the UN CRPD, and the framework every populous Canadian province except Alberta has now built provincial analogues to.

The federal Act establishes the floor. The provincial statutes examined in Sections 2.2 through 2.5 build above the floor in the areas of provincial jurisdiction. Sections 2.6 through 2.7 address the international framework Canada is bound to and Alberta's specific position as the only major Canadian province without provincial accessibility legislation.

The comparator framework Part Two will use across all of these sections is consistent. For each jurisdiction, this Part will examine: when the legislation was passed and through what process; what scope and priority areas the legislation covers; what implementing institutions the legislation creates; what compliance and enforcement mechanisms it establishes; what statutory deadlines it sets; what record of operational implementation it has produced; and what its existence reveals about the legislative choices Alberta has made by not building equivalent architecture.

The federal floor has been documented. Section 2.2 examines the longest-running provincial analogue: Ontario's *Accessibility for Ontarians with Disabilities Act*, in operation since 2005, with twenty years of implementation experience that no other province in Canada matches.